



POLICE DEPARTMENT

December 4, 2008

MEMORANDUM FOR: Police Commissioner

Re: Detective Pedro Lopez
Tax Registry No. 891735
Narcotics Borough Manhattan South
Disciplinary Case No. 82668/07

The above-named member of the Department appeared before me on August 14, 2008, charged with the following:

1. Said Detective Pedro Lopez, while assigned to the Narcotics Borough Manhattan South, on or about September 6, 2006 at approximately 0645 hours, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said Detective Pedro Lopez made disparaging remarks by stating in sum and substance "everyone would be better off if you died" to his estranged [REDACTED]

P.G. 203-10, Page 1, Paragraph 5 PROHIBITED CONDUCT

The Department was represented by Daniel Maurer, Esq., Department Advocate's Office, and the Respondent was represented by James Moschella, Esq.

The Respondent, through his counsel, entered a plea of Guilty to the subject charge. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

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EVIDENCE IN MITIGATION

The Respondent is a 21 ½-year member of the Department currently assigned to Narcotics Borough Manhattan South. He testified that he has been on modified assignment for the past year and 11 months. He stated that his modified assignment resulted from this incident. The Respondent explained that his duties at Narcotics Borough Manhattan South is to work the field operations desk where he handles incoming calls, complaints, and other administrative duties. Prior to this assignment he had been assigned full duty as a narcotics investigator for a little over 12 years.

The Respondent testified that he has been [REDACTED] to [REDACTED] for approximately 17 years. Currently he is going through a [REDACTED]. He explained that the [REDACTED] commenced in December 2005. He has three children with his [REDACTED], a 15-year old son and a set of 11-year old twin daughters. The status of the [REDACTED] is amicable and they each have an attorney. With regard to the custody of the children, they have joint custody, the children physically reside with [REDACTED] and he picks them up every other weekend. The Respondent stated that since the incident date in September 2006 there have been no further incidents between himself and his [REDACTED].

The Respondent stated that in September 2006 he was in a very stressful [REDACTED] situation with [REDACTED]. They were living apart at that time and the [REDACTED] had initiated. [REDACTED] had custody of the three children. The Respondent explained that his son [REDACTED] was diagnosed with [REDACTED]. He was also diagnosed with [REDACTED], which requires taking a large combination of medication. He further explained that there are days when [REDACTED] could be a "handful." The Respondent stated that [REDACTED] had just graduated from junior high

school in June 2006. In September 2006 he was starting high school in a new environment. [REDACTED] would call the Respondent complaining that he was arguing with his mother and could not depart for school on time. [REDACTED] would make the same complaints that she was late to work.

The Respondent testified that he was assigned to Narcotics Borough Manhattan South at that time, working midnights from 9:30 p.m. until 6:00 a.m. There were days when his investigations required him to stay overtime to complete paperwork. He explained that while he was on his way home from having worked a midnight tour [REDACTED] and [REDACTED] would call him three or four times a day usually between 6:00 and 7:30 in the morning.

On September 6, 2006 the Respondent stated that he received a telephone call from [REDACTED], who was running late for school because his mother would not come out of the bathroom. Moments later he received a phone call from [REDACTED] who stated that [REDACTED] was giving her a hard time and she was running late for work. The Respondent informed her that he was in the middle of working and that there was nothing he could do at that time. He asked if they could discuss the matter in the afternoon. He also asked [REDACTED] if she and [REDACTED] could try to get along and her response was, "F you, as always, you are no good. I don't know why I bother calling you," and she hung up the telephone. The Respondent said he felt a combination of sadness, frustration and anger at the remark.

The Respondent stated that he called [REDACTED] back, but the voice mail came on. He left a message that [REDACTED] needs to handle [REDACTED] and resolve the issues at home. And then he commented, "If you are that miserable where you can't handle him, why don't you just die and make the world a better place." The Respondent explained that he was

frustrated that [REDACTED] told him he was good for nothing. He said he knew the remark was stupid, but it came out as a result of his emotional state at the time. He stated that he did not really wish her to die and that he did not intend to make a threat or imply a threat. He estimated that the message lasted about 60 seconds. The Respondent said that he did not attempt to call [REDACTED] back after the message.

The Respondent said later in the week he heard from [REDACTED] twice. He learned that [REDACTED] had been hospitalized at [REDACTED] Center. He learned that his mother took him to the hospital because they were not getting along and she thought his medication was not working so he went to the hospital for an evaluation. On his way to pick up his children on a Saturday, the Respondent said that he received a telephone call from a duty captain. He explained to the duty captain that he was on his way to pick up his children. The duty captain instructed him to pull over and wait for further instruction and the Respondent said that he complied. A short while later, the Respondent received a call to report to the 114 Precinct Station House which he did.

The Respondent stated that he learned at the station house that [REDACTED] had a domestic incident with [REDACTED] and the police were called to the location. [REDACTED] informed them at that time that she had an Order of Protection against the Respondent that she wanted served on him. The Respondent said that there are no current Orders of Protection against him. He stated that since the September 2006 incident, there have been no further incidents between him and [REDACTED]. He did state that a week following the incident he received a call from [REDACTED] indicating that [REDACTED] petitioned the court for a PINS warrant against [REDACTED]. [REDACTED] informed the Respondent that he had a set court date, but that he had no way of getting there because [REDACTED] informed him that she would

not take him to court. The Respondent said that he took lost time from work, picked up [REDACTED] at school and went to [REDACTED] Court so that [REDACTED] would be present at his appointment. As he sat in the waiting area, the Respondent said he heard commotion and heard [REDACTED] stating that she wanted him [the Respondent] arrested because he violated the Order of Protection and had no business being in [REDACTED] Court. The Respondent said that he was ushered into a room along with court officers, his commanding officer and [REDACTED]. [REDACTED] was informed at that time that the Respondent was not violating an Order of Protection because he was in [REDACTED] Court conducting business on behalf of his son.

The relationship between [REDACTED] and [REDACTED] continued to be strained. The Respondent stated that [REDACTED] came to live with him in November 2006. The change in living arrangements resulted in an improvement in the relationship between [REDACTED] and [REDACTED]. Eventually [REDACTED] returned home to live with his mother.

During cross-examination, the Respondent acknowledged that he has three children in common with [REDACTED]. He stated that there were no problems with the twins, only [REDACTED]. He said that he did take an active role in the rearing of his children. He explained that the reason there was a curbside pickup of his children every other week was because he discussed the matter with his attorney and they agreed that given the history he had with [REDACTED] it was best if he had no contact with her when picking up the children for visitation. The Respondent said that the arrangement worked.

The Respondent stated that he contributes monetarily to the care and support of his children. He said that this monetary support will continue until they reach the age of majority. The Respondent acknowledged that he and [REDACTED] initiated the action for [REDACTED] in 2005. He said that there were several factors as to why it had not been finalized. He

said that the judge was out sick, that there were court adjournments, [REDACTED]'s lawyer failed to appear and other issues that needed to be agreed upon between them.

The Respondent admitted that when the [REDACTED] was commenced, his relationship with [REDACTED] was not amicable. He acknowledged that before they got [REDACTED] the relationship was volatile. He also agreed that ten days after they were [REDACTED] he received Departmental charges for striking [REDACTED] with his firearm causing injury. The Respondent admitted that he pleaded Guilty to the charges in that matter and received a penalty. The Respondent also admitted that in April 2000, he received Departmental charges for violating an Order of Protection and pleaded Guilty and received a penalty. The Respondent acknowledged that there were other incidents where he had confrontation with [REDACTED] that did not result in misconduct on his part. One such incident was where [REDACTED] appeared at his job and began antagonizing him there.

PENALTY

The Respondent has pleaded Guilty to engaging in conduct prejudicial to the good order, efficiency and discipline of the Department when he stated in sum and substance the following disparaging remark: "Everyone would be better off if you died." The Respondent admitted that he left the remark on his estranged [REDACTED]'s voicemail following a conversation where she called him for advice and ended the conversation by using profanity and telling him that he was "no good." The Respondent admitted to leaving the voice mail message. He acknowledged that he and his [REDACTED] had a volatile history. He also admitted that he was frustrated with her, that she would call him at work during his midnight tours in Narcotics Borough Manhattan South to complain about her encounters with their son. He explained to her that he could not help her while at work and he would

call her later regarding the dispute she and their son were having. She then ended the conversation with profanity and telling him he was "no good."

As this Court evaluates this incident to determine an appropriate penalty, the Court is mindful that the Respondent has a long, volatile history with his [REDACTED] who he is seeking to [REDACTED]. While there were domestic incidents which date back as far as 1991, the last domestic incident he had with his [REDACTED] was a violation of an Order of Protection in February 2000, some eight years ago. Although there was a police incident in 2003, the Respondent explained that he was in court addressing a family matter involving his son and his wife sought to have him arrested for violating the Order of Protection. The Respondent was not arrested during that incident and was also found not to have violated the Order of Protection.

It is clear, that the domestic incidents are not all caused by the Respondent. In fact, the Respondent acknowledged that several of the domestic incidents involved his [REDACTED] creating a verbal tirade either at his job or in court. In all instances where the Respondent was at fault, however, he accepted a penalty for his conduct.

What is noteworthy is the fact that the Respondent had been placed on modified assignment since the September 2006 voice mail message, the substance of the charge in this matter. He has had no subsequent incident with his [REDACTED] and as such has demonstrated restraint in his dealings with her despite having bi-weekly visitation with his three children. In addition, the Court notes that the Department initially offered the Respondent a recommended penalty of 20 vacation days along with a service retirement subject to the approval of the Police Commissioner. However, at the time of trial, the recommended penalty was 30 vacations days and one-year dismissal probation. It is clear from this

recommendation at trial that the Department is not seeking to separate the Respondent from the Department. The Department acknowledged that it did not believe the Respondent would act on the statement he left in the voice mail message.

The Court is of the opinion, however, that there is no need for Department monitoring of this Respondent at this time based on this sole specification. For one, the Respondent left a voice mail message which he acknowledged was hurtful to his estranged [REDACTED] but was not a threat. Secondly, the Respondent did not follow up the voice mail message with any verbal or physical threats of any kind to his [REDACTED]. In addition, since this incident, the Respondent has been on modified assignment as of September 9, 2006 and for the almost two years following the incident, there have been no further events reported between the Respondent and his [REDACTED]. Thus the misconduct in and of itself does not warrant monitoring nor does the action (or lack thereof) of the Respondent since the incident warrant any additional Department monitoring. For these reasons, I do not believe that one-year dismissal probation will serve any end. The Respondent has found a way to exercise restraint when dealing with his [REDACTED] as he seeks to end this [REDACTED] with the aid of legal counsel.

The fundamental issue is whether the Respondent should be a police officer or not. The recommendation of 30 vacation days and one-year dismissal probation shows that the Department believes the Respondent should not be separated from the Department. The problem is that the recommendation of one-year dismissal probation does not address the issues facing the Respondent. One-year dismissal probation monitors the Respondent for one year. However, the Respondent has three children in common with his [REDACTED] and a lifetime of visitation, support and contact to follow. One-year probation does not address

that future and has already been determined to not be the appropriate remedy for the verbal remark at hand.

Given the minor nature of the voice mail message, the lack of a threat made, the fact that the message was not followed with any physical or verbal threats of any kind and that it occurred almost two years ago with no subsequent events, I recommend that the Respondent be given a penalty commensurate with the misconduct and his record.

A review of the Respondent's disciplinary record shows that he had a physical altercation with his [REDACTED] in 1991, some 17 years ago. In 2000, the Respondent violated the Order of Protection by making harassing phone calls which was not physical violence, and the Respondent accepted a penalty for that misconduct. The last incident with his [REDACTED] prior to the voice mail message was in 2003 when he accompanied his [REDACTED] to court on a family matter and his [REDACTED] sought to have him arrested for violating the Order of Protection. The Respondent did accept a penalty in that matter, not for violating the Order of Protection, but for failing to report the police incident to the Department. The penalty was administrative in nature, and according to the Respondent, was not based on any physical or verbal altercation with his [REDACTED]. The instant matter involves a verbal remark, albeit of concern, was not an actual threat.

Accordingly, given the nature of the remark, the fact that the Respondent has been on modified assignment for two years following the remark without incident and the Respondent's record, I recommend that he forfeit 15 vacation days to resolve this matter.

APPROVED

FEB 23 2009
Raymond W. Kelly
RAYMOND W. KELLY
POLICE COMMISSIONER

Respectfully submitted,

Claudia Daniels-DePeyster
Claudia Daniels-DePeyster
Assistant Deputy Commissioner-Trials